

Court No. - 34

Case :- WRIT - C No. - 25512 of 2016

Petitioner :- Anmol Laghu Udyog

Respondent :- D.V.V.N. Agra And Another

Counsel for Petitioner :- Kailash Nath Kesharwani

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Sudhir Agarwal,J.

Hon'ble Shamsher Bahadur Singh,J.

1. The impugned notice issued by Executive Engineer, Dakshinanchal vidyut Vitran Nigam, vidyut Vitran Khan Auraiya shows blank/X at relevant places and it does not show as to why compounding fee and assessment demand has been made from petitioner-consumer.
2. Let Executive Engineer concerned appear before this Court on 30.05.2016.
3. Sri Kamal Kesharwani, Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel for respondents, shall inform about this order to concerned Executive Engineer.
4. Put up on 30.05.2016.

Order Date :- 27.5.2016

AK

Court No. - 34

Case :- WRIT - C No. - 25512 of 2016

Petitioner :- Anmol Laghu Udyog

Respondent :- D.V.V.N. Agra And Another

Counsel for Petitioner :- Kailash Nath Kesharwani

Counsel for Respondent :- Baleshwar Chaturvedi, Kamal Kesarwani

Hon'ble Sudhir Agarwal, J.

Hon'ble Mohd. Tahir, J.

Put up this case tomorrow.

Order Date :- 30.5.2016

PS

Court No. - 34

Case :- WRIT - C No. - 25512 of 2016

Petitioner :- Anmol Laghu Udyog

Respondent :- D.V.V.N. Agra And Another

Counsel for Petitioner :- Kailash Nath Kesharwani

Counsel for Respondent :- Baleshwar Chaturvedi, Kamal Kesarwani

Hon'ble Sudhir Agarwal, J.

Hon'ble Prabhat Chandra Tripathi, J.

1. The petitioner is aggrieved by demand of a huge sum of Rs.32,66,462.37, being revenue assessment and compounding charges made by Executive Engineer. The aforesaid demand was raised vide order dated 4th May, 2016. A copy of the said notice has been filed as Annexure -5.

2. A bare perusal of the said notice nowhere shows as to why the aforesaid demand has been raised. It only shows that on 15th March, 2016, an inspection was made and thereafter, a mark 'x' was put at several places and then assessment amount and compounding charges have been mentioned.

3. It is contended that without informing the petitioner of any reason as to why assessment has been made, the impugned notice has been issued, which is patently illegal and in the teeth of Division Bench judgment of this Court in **Ashok Kumar and others Vs. State of U.P. and others 2008 (6) ADJ 660 (DB)**.

4. When called upon, learned counsel appearing for respondent, after going through the said notice, could not say as to why the said notice has been issued. It appears that assessment was made on account of some theft and unauthorised use of electricity but nothing stated in the notice.

5. In these circumstances, we passed an order dated 27th May, 2016 directing, respondent- 2 to appear before this Court and explain as to why and for what reasons notice has been issued without mentioning any reason therein and also the basis and manner in which assessment has been made though that is the requirement of law.

6. Respondent- 2 despite order dated 27th May, 2016, is not present.

7. Learned counsel appearing for respondent stated that Sri Pankaj Sharma, Executive Engineer-respondent- 2 is not well and medically unfit to undertake journey. When enquired, he did not dispute that officer concerned is not on medical leave and on record he is performing his duties as Executive Engineer of the Distribution Division concerned which involves hectic journey of entire area under his control. Further, we find that one Sri Arvind Kumar Singh, Sub-Divisional Officer has been sent by respondent- 2 without giving any instructions in the matter. When called upon to explain notice dated 4th May, 2016, Sri Arvind Kumar Singh, Sub-Divisional Officer states that he is not aware of anything in the matter and not in a position to reply any query made by this Court. This shows how respondent authorities can defy Court's order so that the matter which may be decided at the earliest, can not be done. This conduct on the part of respondent- 2 is also highly derogatory and objectionable.

8. We, therefore, issue a non-bailable warrant to respondent 2 which office is presently held by Sri Pankaj Sharma, we direct that warrant shall be executed by Chief Judicial Magistrate, District- Auraiya, who shall ensure presence of respondent- 2 before this Court in custody on 6th July, 2016.

9. List this matter on 6th July, 2016.

Order Date :- 31.5.2016

Atmesh

Court No. - 1

Case :- WRIT - C No. - 25512 of 2016

Petitioner :- Anmol Laghu Udyog

Respondent :- D.V.V.N. Agra And Another

Counsel for Petitioner :- Kailash Nath Kesharwani

Counsel for Respondent :- Baleshwar Chaturvedi, Kamal Kesarwani

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Pursuant to the order of the Court dated 31.05.2016, the Respondent No. 2, Pankaj Sharma, Executive Engineer, Electricity Distribution, Division Auraiya is present in the Court and has filed an affidavit indicating that an accident on 14.05.2016 resulted in the fracture of his spinal bone and that he was advised complete bed rest. As a result of the aforesaid accident he could not appear before the Court on 30.05.2016.

The explanation is accepted.

The Respondent No. 2, Pankaj Sharma is discharged and is not required to appear in person but will be represented through his counsel.

Sri Baleshwar Chaturvedi, learned counsel for the respondents will file a counter affidavit within two weeks.

List on 22.07.2016.

In the meanwhile, if the petitioner deposits a sum of Rs. 16 Lacs, the electricity connection will be restored within 48 hours.

Proof of such deposit shall be filed by the petitioner or on before the next date of listing.

This Court by order dated 31.05.2016 had issued NBW against Pankaj Sharma, Respondent No. 2

to take him into custody. The said NBW was required to be executed by Chief Judicial Magistrate, District Auraiya. The warrant was sent by the Registry, which was duly received by the office of the Chief Judicial Magistrate, District Auraiya.

A letter dated 04.07.2016 issued by the Chief Judicial Magistrate, District Auraiya has been received by the Registry, which has been kept on record which indicates that the Executive Engineer, Pankaj Sharma was not arrested as he gave an assurance to appear before the Court on the date fixed.

We are of the opinion that when the Court issues a NBW, the same is required to be executed and complied with. The Chief Judicial Magistrate, District Auraiya had no authority to act on the assurance of the Executive Engineer. The Chief Judicial Magistrate, District Auraiya had no business to return the warrant without executing it.

The Registrar General is directed to issue a notice to the Chief Judicial Magistrate, District Auraiya asking for an explanation to be submitted on or before the next date fixed in the matter i.e. 22.07.2016.

Registry is directed to place a copy of this order before the Registrar General within 24 hours.

Order Date :- 6.7.2016
Sandeep

(Vipin Sinha,J.) (Tarun Agarwala,J.)

Court No. - 29

Case :- WRIT - C No. - 25512 of 2016

Petitioner :- Anmol Laghu Udyog

Respondent :- D.V.V.N. Agra And Another

Counsel for Petitioner :- Kailash Nath Kesharwani

Counsel for Respondent :- Baleshwar Chaturvedi, Kamal Kesarwani

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Counter affidavit filed today is taken on record.

Two weeks' time is allowed to the petitioner to file a rejoinder affidavit.

List thereafter.

Order Date :- 28.7.2016

AKJ

(Vipin Sinha, J.)

(Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 25512 of 2016

Petitioner :- Anmol Laghu Udyog

Respondent :- D.V.V.N. Agra And Another

Counsel for Petitioner :- Kailash Nath Kesharwani

Counsel for Respondent :- Baleshwar Chaturvedi, Kamal Kesarwani

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

One week time is allowed to the petitioner to file rejoinder affidavit.

List thereafter.

Order Date :- 30.8.2016

Sandeep

(Vipin Sinha, J.)

(Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 25512 of 2016

Petitioner :- Anmol Laghu Udyog

Respondent :- D.V.V.N. Agra And Another

Counsel for Petitioner :- Kailash Nath Kesharwani

Counsel for Respondent :- Baleshwar Chaturvedi, Kamal Kesarwani

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

One week's time is allowed to the petitioner to file rejoinder affidavit.

List thereafter.

Order Date :- 7.9.2016

Kuldeep

(Vipin Sinha, J.) (Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 25512 of 2016

Petitioner :- Anmol Laghu Udyog

Respondent :- D.V.V.N. Agra And Another

Counsel for Petitioner :- Kailash Nath Kesharwani

Counsel for Respondent :- Baleshwar Chaturvedi, Kamal Kesarwani

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

One week time is allowed to the petitioner to file rejoinder affidavit.

List thereafter.

Order Date :- 19.9.2016

Bhaskar

(Vipin Sinha, J.)

(Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 25512 of 2016

Petitioner :- Anmol Laghu Udyog

Respondent :- D.V.V.N. Agra And Another

Counsel for Petitioner :- Kailash Nath Kesharwani

Counsel for Respondent :- Baleshwar Chaturvedi, Kamal Kesarwani

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Rejoinder affidavit filed in Court today, is taken on record.

List in the next cause list.

Order Date :- 6.10.2016

Anand

(Vipin Sinha, J.)

(Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 25512 of 2016

Petitioner :- Anmol Laghu Udyog

Respondent :- D.V.V.N. Agra And Another

Counsel for Petitioner :- Kailash Nath Kesharwani

Counsel for Respondent :- Baleshwar Chaturvedi, Kamal Kesarwani

Hon'ble Tarun Agarwala, J.

Hon'ble Siddhartha Varma, J.

We have perused the explanation given by the Chief Judicial Magistrate.

We are constrained to observe that the Chief Judicial Magistrate is not aware as to how a non-bailable warrant issued by the High Court is required to be executed. Apparently, neither he nor the Station House Officer knows the difference between a bailable warrant and a non-bailable warrant.

We, accordingly, direct Sri Harbans Narain, Chief Judicial Magistrate, Auraiya as well as the Station House Officer, who was deputed to execute the non-bailable warrant to appear before the Court on 30th November, 2016 and show cause as to why action against them should not be taken for dereliction of duty in not getting non-bailable warrant executed.

On the merits of the case, we are not happy in the manner in which the inspection report was recorded. It is not known in whose presence the inspection was recorded.

We, accordingly, direct the then Executive Engineer, Pankaj Sharma to appear before the Court on 30th November, 2016 along with the

full record of the case.

List on 30th November, 2016.

Registry will issue notice to the Chief Judicial Magistrate, Auraiya directing him to appear before the Court on 30th November, 2016. Necessary notice should be issued within 48 hours.

Sri Vishnu Pratap Singh, the learned Standing Counsel will ensure the presence of the Station House Officer.

Copy of this order shall be made available to Sri Vishu Pratap Singh, the learned Standing Counsel within 48 hours.

Order Date :- 15.11.2016

Bhaskar

(Siddhartha Varma, J.)

(Tarun Agarwala, J.)

Court No. - 21

Case :- WRIT - C No. - 25512 of 2016

Petitioner :- Anmol Laghu Udyog

Respondent :- D.V.V.N. Agra And Another

Counsel for Petitioner :- Kailash Nath Kesharwani

Counsel for Respondent :- Baleshwar Chaturvedi, Kamal Kesarwani

Hon'ble V.K. Shukla, J.

Hon'ble Mahesh Chandra Tripathi, J.

Anmol Laghu Udyog through its proprietor Anmol Katiyar is before this Court assailing the validity of the recovery notice dated 4.5.2016 issued by the Executive Engineer, Dakshinanchal Vidyut Vitaran Nigam, Vidyut Vitaran Khand, Auraiya and further prayer has been made to quash the checking report dated 15.3.2016 issued by the same authority and to restore the supply of the electricity to the connection no. 6534301502 of the petitioner as well as the light and fan connection no. 1151/342448 of Ram Shankar Katiyar immediately.

The factual matrix as is so emerging that petitioner is running a Poha Mill in the name and style of Anmol Laghu Udyog and for the said purpose petitioner claims that he has taken power connection no. 6534301502 of 30 KWH. Petitioner has contended that he has been paying the regular bill, as was being raised time to time and on 15.3.2016 Executive Engineer, Electricity Distribution Division, Auraiya came to the premises of the petitioner and checking was done. Petitioner submits that there has been illegal demand and, thereafter, his electricity connection was disconnected on 3.5.2016. Petitioner submits that thereafter he has been requesting for restoration of his electricity connection but nothing was done and, thereafter, petitioner submits that to his surprise he has received recovery notice wherein the amount of Rs. 6,00,000/- has been demanded as compounding fee and Rs. 26,66,462.37/- as demand assessment. Petitioner, at this juncture, is before this Court assailing the validity of the action, so taken.

On the presentation of the writ petition, this Court on 27.5.2016 passed the following order;

"1. The impugned notice issued by Executive Engineer, Dakshinanchal vidyut Vitran Nigam, vidyut Vitran Khan Auraiya shows blank/X at relevant places and it does not show as to why compounding fee and assessment demand has been made from petitioner-consumer.

2. Let Executive Engineer concerned appear before this Court on 30.05.2016.

3. Sri Kamal Kesharwani, Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel for respondents, shall inform about this order to concerned Executive Engineer.

4. Put up on 30.05.2016."

Thereafter, the matter was taken up on 31.5.2016 and following order was passed;

"1. The petitioner is aggrieved by demand of a huge sum of Rs.32,66,462.37, being revenue assessment and compounding charges made by Executive Engineer. The aforesaid demand was raised vide order dated 4th May, 2016. A copy of the said notice has been filed as Annexure -5.

2. A bare perusal of the said notice nowhere shows as to why the aforesaid demand has been raised. It only shows that on 15th March, 2016, an inspection was made and thereafter, a mark 'x' was put at several places and then assessment amount and compounding charges have been mentioned.

3. It is contended that without informing the petitioner of any reason as to why assessment has been made, the impugned notice has been issued, which is patently illegal and in the teeth of Division Bench judgment of this Court in Ashok Kumar and others Vs. State of U.P. and others 2008 (6) ADJ 660 (DB).

4. When called upon, learned counsel appearing for respondent, after going through the said notice, could not say as to why the said notice has been issued. It appears that assessment was made on account of some theft and unauthorised use of electricity but nothing stated in the notice.

5. In these circumstances, we passed an order dated 27th May, 2016 directing, respondent- 2 to appear before this Court and explain as to why and for what reasons notice has been issued without mentioning any reason therein and also the basis and manner in which assessment has been made though that is the requirement of law.

6. Respondent- 2 despite order dated 27th May, 2016, is not present.

7. Learned counsel appearing for respondent stated that Sri Pankaj Sharma, Executive Engineer-respondent- 2 is not well and medically unfit to undertake journey. When enquired, he did not dispute that officer concerned is not on medical leave and on record he is performing his duties as Executive Engineer of the Distribution Division concerned which involves hectic journey of entire area under his control. Further, we find that one Sri Arvind Kumar Singh, Sub-Divisional Officer has been sent by respondent- 2 without giving any instructions in the matter. When called upon to explain notice dated 4th May, 2016, Sri Arvind Kumar Singh,

Sub-Divisional Officer states that he is not aware of anything in the matter and not in a position to reply any query made by this Court. This shows how respondent authorities can defy Court's order so that the matter which may be decided at the earliest, can not be done. This conduct on the part of respondent- 2 is also highly derogatory and objectionable.

8. We, therefore, issue a non-bailable warrant to respondent 2 which office is presently held by Sri Pankaj Sharma, we direct that warrant shall be executed by Chief Judicial Magistrate, District-Auraiya, who shall ensure presence of respondent- 2 before this Court in custody on 6th July, 2016.

9. List this matter on 6th July, 2016.”

The matter was once again taken up on 6.7.2016 and on the said date following order was passed;

“Pursuant to the order of the Court dated 31.05.2016, the Respondent No. 2, Pankaj Sharma, Executive Engineer, Electricity Distribution, Division Auraiya is present in the Court and has filed an affidavit indicating that an accident on 14.05.2016 resulted in the fracture of his spinal bone and that he was advised complete bed rest. As a result of the aforesaid accident he could not appear before the Court on 30.05.2016.

The explanation is accepted.

The Respondent No. 2, Pankaj Sharma is discharged and is not required to appear in person but will be represented through his counsel.

Sri Baleshwar Chaturvedi, learned counsel for the respondents will file a counter affidavit within two weeks.

List on 22.07.2016.

In the meanwhile, if the petitioner deposits a sum of Rs. 16 Lacs, the electricity connection will be restored within 48 hours.

Proof of such deposit shall be filed by the petitioner or on before the next date of listing.

This Court by order dated 31.05.2016 had issued NBW against Pankaj Sharma, Respondent No. 2 to take him into custody. The said NBW was required to be executed by Chief Judicial Magistrate, District Auraiya. The warrant was sent by the Registry, which was duly received by the office of the Chief Judicial Magistrate, District Auraiya.

A letter dated 04.07.2016 issued by the Chief Judicial Magistrate, District Auraiya has been received by the Registry, which has been kept on record which indicates that the Executive Engineer, Pankaj Sharma was not arrested as he gave an assurance to appear before the Court on the date fixed.

We are of the opinion that when the Court issues a NBW, the same is required to be executed and complied with. The Chief Judicial Magistrate, District Auraiya had no authority to act on the assurance of the Executive Engineer. The Chief Judicial Magistrate, District Auraiya had no business to return the warrant without executing it.

The Registrar General is directed to issue a notice to the Chief

Judicial Magistrate, District Auraiya asking for an explanation to be submitted on or before the next date fixed in the matter i.e. 22.07.2016.

Registry is directed to place a copy of this order before the Registrar General within 24 hours."

Thereafter, counter affidavit was filed and time was accorded for filing of rejoinder affidavit on 28.7.2016. The matter, thereafter, was taken up on 6.10.2016, when rejoinder affidavit was filed and this Court on 15.11.2016 passed the following order;

"We have perused the explanation given by the Chief Judicial Magistrate.

We are constrained to observe that the Chief Judicial Magistrate is not aware as to how a non-bailable warrant issued by the High Court is required to be executed. Apparently, neither he nor the Station House Officer knows the difference between a bailable warrant and a non-bailable warrant.

We, accordingly, direct Sri Harbans Narain, Chief Judicial Magistrate, Auraiya as well as the Station House Officer, who was deputed to execute the non-bailable warrant to appear before the Court on 30th November, 2016 and show cause as to why action against them should not be taken for dereliction of duty in not getting non-bailable warrant executed.

On the merits of the case, we are not happy in the manner in which the inspection report was recorded. It is not known in whose presence the inspection was recorded. We, accordingly, direct the then Executive Engineer, Pankaj Sharma to appear before the Court on 30th November, 2016 along with the full record of the case.

List on 30th November, 2016.

Registry will issue notice to the Chief Judicial Magistrate, Auraiya directing him to appear before the Court on 30th November, 2016. Necessary notice should be issued within 48 hours.

Sri Vishnu Pratap Singh, the learned Standing Counsel will ensure the presence of the Station House Officer.

Copy of this order shall be made available to Sri Vishu Pratap Singh, the learned Standing Counsel within 48 hours."

Pursuant to the order passed by this Court today Sri Harbans Narain, Chief Judicial Magistrate, Auraiya as well as concerned Station House Officer and the then Executive Engineer Pankaj Sharma are present in the Court alongwith the record in question and, thereafter, the matter has been taken up for final hearing and disposal.

Sri K.N. Kesharwani, learned counsel for the petitioner, submitted with vehemence that in the present case entire proceedings, that have been so undertaken, are in utter contravention of the provisions as are contained under Paragraph 6.8 of U.P. Electricity Supply Code 2005 and at

no point of time before proceeding to initiate recovery proceeding any assessment has been done nor any opportunity of hearing has been afforded to the petitioner, in view of this, the entire proceedings are per-se bad and liable to be quashed.

Sri C.B. Yadav, Senior Advocate/Additional Advocate General, and Sri Baleshwar Chaturvedi, Advocate, appearing for Dakshinanchal Vidyut Vitaran Nigam, Vidyut Vitaran Khand, submitted that on its face value from the record in question this much is reflected that prescribed procedure, as is provided under Paragraph 6.8 of the Code, 2005, has not been adhered to, in view of this, the recovery notice dated 4.5.2016 be quashed by this Court with liberty to initiate proceeding in accordance with law.

In order to appreciate this aspect of the matter we proceed to notice para 6.8 (a) (b) and (c) of the Code, 2005 provided by the U.P. Electricity Regulatory Commission in exercise of powers conferred by Section 50 of the Act.

Para 6.8 (a), (b) and (c) of the Code, 2005 deals in detail the procedure for inspection, provisional assessment, hearing and final assessment in the case of unauthorised use of electricity and reads as under:

"6.8 Procedure for Inspection, Provisional assessment, Hearing and Final Assessment in case of unauthorised use of electricity (UUE) under Section 126 of the Act.

(a) (i) An Assessing Officer shall suo-moto, or on receipt of reliable information regarding unauthorised use of electricity or on instruction from higher authority, promptly conduct inspection of such premises, exercising due diligence.

(ii) The assessing Officer, if required to do so, may handover his business card to the consumer before entering the premises. Photo ID card shall be carried by each team members.

(iii) The access to consumer premises shall be in accordance to clause 4.30 to 4.34. Provided that the occupant of the place of search or any person on his behalf shall remain present during the inspection. A list of all things seized in the course of such search shall be prepared and delivered to such occupant or person who shall sign the list.

(iv) The report shall be prepared at site giving details of connected load, condition and details of old seals and resealing done, working of meter, details of new seals. The report shall mention any irregularity noticed which may lead to an inference of unauthorised use of electricity in the format given Annexure 6.4.

The Inspecting Officer shall carry seals for this purpose.

(v) The report shall clearly indicate whether or not conclusive evidence substantiating the fact that UAE was found. The details of such evidence should be recorded in the report. The report shall be signed by each member of the inspection team and handed over to the consumer or his/her representative at site immediately under proper receipt. In case of refusal by the consumer or his/her representative to either accept or give a receipt, a copy of inspection report shall be pasted at a conspicuous place in/outside the premises and may be photographed. Simultaneously, the report shall be sent to the consumer under Registered Post/Speed post on the day or the next day of the inspection.

(vi) Within 3 working days of the date of inspection, the Assessing Officer shall analyse the case after carefully considering all the evidence including the consumption pattern, wherever available and the report of inspection. If it is concluded that no unauthorised use of electricity has taken place, no further action will be taken.

(b) Notice to the Consumer and his reply:

(i) If the Assessing Officer suspects that Unauthorised Use of Electricity has taken place (as defined under Explanation to Section 126 of the Act), he will serve a provisional assessment bill alongwith show cause notice to the consumer, giving 15 working days for submission of reply, under proper receipt fixing a date of hearing.

(ii) The notice shall invite objections in writing from the consumer against the charges and provisional assessment and require presence of the consumer on the date of hearing.

(c) Hearing

(i) On the date of hearing, the Assessing Officer shall hear the consumer. The Assessing Officer shall give due consideration to the facts submitted by the consumer and pass, within 7 working days, a speaking order as to whether the case of UAE is established or not. The order shall contain the brief of inspection report, submissions made by the consumer in his written reply and during hearing.

(ii) A copy of the order shall be served to the consumer under proper receipt, and in case of refusal to accept the order or in absence of the consumer, shall be served on him under Registered Post/Speed Post. The consumer shall be required to make the payment within 15 days of receipt of final order for assessment.

(iii) If the Assessing Officer finds that unauthorised use of electricity has taken place (as defined under explanation to Section 126 of the Electricity Act, 2003, it shall be presumed unless contrary is proved, that such unauthorised use of electricity was continuing for either actual period of misuse, if available, or three months immediately preceding the date of inspection in case of domestic and agriculture services and for a period of six months immediately preceding the date of inspection for all other categories of services, and he shall provisionally assess the consumption as per the procedure specified in Annexure 6.3.

(iv) The assessment under (iii) above shall be made at a rate equal to one-and-a-half times the tariff rates applicable for the relevant category of service. The amount billed at this rate (one-and-a-half times the tariff rates) shall not be taken into consideration for the purpose of computing consumer's liability to pay monthly/annual charges, wherever applicable."

A perusal of para 6.8 (a) (i), (ii), (iv) and (v) shows that it presupposes an inspection of the premises to be made by the assessing officer and if he finds evidence of irregularities constituting unauthorised use of electricity at the premises, shall prepare a report at the site, giving details thereof, and, would handover the copy of such report to the consumer or his representative at the site itself. In case of refusal by consumer or its representative, to either accept or giving receipt to such report, the same shall be pasted at a conspicuous place at the premises and shall also be sent to the consumer under registered post/speed post on the day itself or the next day of the inspection. Therefore, the requirement of prima facie conclusion is supposed to be recorded by the assessing officer at the time of inspection itself and needs to be communicated to the consumer. Para 6.8 (b) (ii) shows that the notice shall require the consumer to give his objections against the charges and provisional assessment. Para 6.8 (c) (i) shows that an opportunity of personal hearing shall also be given to the consumer and thereafter the assessing officer shall pass a speaking order recording (i) whether unauthorised use of energy is established or not, and; where it is so established, (ii) shall determine the quantum of the amount which the consumer has to pay i.e. the assessment shall be made by the assessing officer. Thus even Code, 2005 which contains the conditions of electricity supply etc., provides a detailed procedure in which the assessment would have to be made by the assessing officer.

This Court in the case of ***Ashok Kumar & others Vs. State of U.P. & others, 2008 (6) ADJ 660 (DB)***, has clearly taken the view that non-compliance of Paragraph 6.8 of the Code, 2005, vitiates the proceeding as well as demand notice issued pursuant thereto. View to the similar effect has been taken by this Court in the case of ***Kamil Vs. State of U.P. & others, 2016 (6) ADJ 11 (DB)***, wherein this Court has taken note of the fact that there was nothing on record to suggest that petitioner was provided any provisional assessment bill and opportunity to file

objections of the same or any date has been fixed for hearing the view point of petitioner as prescribed under the provisions of Paragraph 6.8 (b) (2) of the Code, 2005. The dictum in the case of ***Ashok Kumar (supra)*** has been reaffirmed and reiterated in the subsequent Division Benches also.

On the parameters of the aforementioned provisions, that have been quoted above, as far as case in hand is concerned, what we see that inspection in question has been carried out and in the checking report dated 15.3.2016 petitioner has also appended his signatures but the fact of the matter is that thereafter at no point of time any exercise as is required to be undertaken in consonance with the full fledged mechanism, as is provided for under Paragraph 6.8 of the Code, 2005, has ever been undertaken. Once the consumer concerned has not at all been associated in the inquiry, as was required, for arriving and reaching to a conclusion before final assessment done by the Assessing Officer, then such an approach cannot be approved of by us and any recovery proceeding undertaken without pre-requisite exercise being undertaken, also cannot be approved of and the said proceeding will necessarily have to be presumed to be in violation of principle of nature justice and against the rule of fair play and thus for all practical purposes lending to arbitrariness, in such a situation and in this background, the recovery notice dated 4.5.2016 is hereby quashed and set-aside and we make it clear that recovery can be initiated fresh only once proceeding in question is undertaken after adopting the prescribed procedure, as is provided for under the provisions of Electricity Act, 2003 read with the provisions of Paragraph 6.8 of the Code, 2005.

With the above observations, writ petition is ***allowed***.

In the present case what we find from the record in question that petitioner's connection has been restored with the condition if the petitioner deposits a sum of Rs. 16,00,000/-, the connection be restored within 48 hours. In case, petitioner has complied with the said order in question and Rs. 16,00,000/- has been deposited by him, then the said amount in question should remain deposited and petitioner should continue to pay the current bills, so raised and we make it clear that the amount in question, that has been so deposited, the same would abide by

the decision to be taken by the authorities for assessment under Section 126 of the Electricity Act, 2003 to be undertaken in consonance with the provisions as contained under Paragraph 6.8 of the Code, 2005, and in case on the basis of assessment, so made, it is found that excess amount has been deposited, then the balance amount in question after adjusting the electricity dues be returned and, in case, any further amount is liable to be deposited, then the petitioner be informed, accordingly.

We also find from the record in question that this Court was not at all pleased with the way and manner the Chief Judicial Magistrate and Station House Officer of the concerned police station has proceeded in the matter.

Today, on the matter being taken up today, the Chief Judicial Magistrate, Auraiya as well as the concerned Station House Officer have entered appearance before us and we have proceeded to hear Sri Sudhir Malhotra, Advocate and learned Standing Counsel Sri Rajiv Singh in respect of their respective version and what we find that as far as the Chief Judicial Magistrate is concerned, he had taken all requisite steps required to be undertaken for execution of non-bailable warrant and he cannot be faulted and whatever slight laxity is there, same has been on the part of the police official Sri Nanhe Lal Yadav, as the then Executive Engineer Pankaj Sharma has met with an accident and in such a situation the police personnel instead of proceeding to take action strictly as per law, tried to go by human angle, not subscribed by law.

However, looking into the peculiar facts and circumstances of the case, the explanation furnished both by the Chief Judicial Magistrate as well as Station House Officer and the fact that as assured the then Executive Engineer Pankaj Sharma did appear before this Court on the date fixed and his personal appearance has been exempted clearly prompts us to drop the proceedings in question here, as no useful purpose would be served by means of initiating any proceeding against them, in the facts of the case.

(Mahesh Chandra Tripathi, J.) (V.K. Shukla, J.)

Order Date :- 30.11.2016
Shekhar